

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant
Keith Johnson

Case Number: 25-01514

vs.

Respondent
Fidelity Brokerage

Hearing Site: Denver, Colorado

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Customer vs. Member

This matter proceeded pursuant to Rule 12800 of the Code of Arbitration Procedure (“Code”). Claimant did not request a hearing.

REPRESENTATION OF PARTIES

Claimant Keith Johnson (“Claimant”) appeared pro se.

For Respondent Fidelity Brokerage (“Fidelity”): Brooke S. Fleischman, Esq., FMR LLC Legal Department, Durham, North Carolina.

CASE INFORMATION

Statement of Claim filed on or about: July 24, 2025.

Final Submission filed by Claimant on or about: November 21, 2025.

Claimant signed the Submission Agreement: July 24, 2025.

Statement of Answer filed by Respondent on or about: September 16, 2025.

Supporting Affidavit filed by Respondent on or about: November 18, 2025.

Respondent signed the Submission Agreement: September 16, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted the following causes of action: manipulation; misrepresentation/non-disclosures; omission of facts; and sell outs. The causes of action relate to Claimant’s investment in BitMine Immersion Technologies.

Unless specifically admitted in the Statement of Answer, Respondent denied the allegations made in the Statement of Claim and asserted various affirmative defenses.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested reimbursement for monies lost in the amount \$7,256.00.

In the Statement of Answer, Respondent did not set forth a specific relief request.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

The Arbitrator has provided an explanation of the decision in this award. The explanation is for the parties' information only and is not precedential in nature.

FINDINGS

Respondent acted in conformance with the Fidelity Account-Customer Agreement and the Margin Disclosure Statement.

AWARD

After considering the pleadings, the Arbitrator has decided and determined in full and final resolution of the issues submitted for determination as follows:

1. Claimant's claims are denied in their entirety.
2. FINRA Dispute Resolution Services shall retain the \$325.00 filing fee that Claimant deposited previously.
3. Respondent is liable for and shall pay to Claimant \$162.50 to reimburse Claimant for one-half of the filing fee previously paid to FINRA Dispute Resolution Services.

FEES

Pursuant to the Code:

Respondent has paid to FINRA Dispute Resolution Services the \$360.00 Member Surcharge Fee previously invoiced.

ARBITRATOR

Richard Kent Mahrle

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Richard Kent Mahrle

Richard Kent Mahrle
Sole Public Arbitrator

11/28/2025

Signature Date

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

December 01, 2025

Date of Service (For FINRA Dispute Resolution Services use only)